

CV 15 - 1149

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----x
WALTER ACOSTA,

Plaintiff,

-against-

THE CITY OF NEW YORK and DEREK SAMBOLIN,

Defendants.
-----x

COMPLAINT

Jury Trial Demanded

ECF Case

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

CHEN, J.

FILED
CLERK

2015 MAR -5 PM 1:54

Plaintiff WALTER ACOSTA, by his attorney, Robert T. Perry, respectfully alleges as

follows:

NATURE OF ACTION

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of his civil rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 and the Fourth and Fourteenth Amendments to the United States Constitution.

3. The Court has jurisdiction over plaintiff's federal law claims under 28 U.S.C. § 1331 and 28 U.S.C. § 1343.

4. Venue is proper in the Eastern District of New York under 28 U.S.C. § 1391(b) in that a substantial part of the events giving rise to plaintiff's claims occurred in this district.

JURY DEMAND

5. Plaintiff respectfully demands trial by jury of all issues properly triable thereby pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff WALTER ACOSTA is a resident of Brooklyn, New York.

7. Defendant THE CITY OF NEW YORK (“the City”) is, and was at all times relevant herein, a municipal corporation duly organized and existing under the laws of the State of New York. The City maintains the New York City Police Department (“NYPD”), which acts as the City’s agent in the area of law enforcement and for which the City is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers, as said risks attach to the public consumers of the services provided by the NYPD.

8. Defendant DEREK SAMBOLIN (Shield No. 6906) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD. During the relevant times herein, defendant Sambolin was a police officer assigned to the 73rd Precinct in Brooklyn, New York. Defendant Sambolin is being sued in his individual capacity.

9. At all relevant times herein, defendant Sambolin acted under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

10. At all relevant times herein, defendant Sambolin acted within the scope of his employment with the City and the NYPD.

STATEMENT OF FACTS

11. On Thursday, March 8, 2012, at about 10:00 p.m., plaintiff was driving east on East New York Avenue between Thomas S. Boyland and Bristol Streets in Brooklyn, New York, with two friends in the back seat.

12. Plaintiff was operating a Chevrolet Impala which he had lawfully purchased less than a month earlier, on February 9, 2012.

13. At the time of purchase, plaintiff had obtained the requisite insurance for the vehicle and registered the vehicle with the New York State Department of Motor Vehicles.

14. The vehicle insurance and registration were still in effect on March 8, 2012.

15. Plaintiff had the insurance and registration papers with him in the glove compartment of the vehicle.

16. A valid temporary license plate was affixed to the rear windshield of the vehicle.

17. Plaintiff had a valid driver's license which was in effect, had not been suspended, and was in the wallet in his pocket.

18. Plaintiff was operating the vehicle in compliance with all traffic rules and regulations.

19. As plaintiff drove past the 73rd Precinct at 1470 East New York Avenue, a police car pulled out into the street behind plaintiff's vehicle with lights on, signaling for plaintiff to pull over and stop.

20. Plaintiff promptly pulled over to the right side of the street and stopped.

21. Defendant Sambolin and two other police officers exited the police car and approached plaintiff's vehicle.

22. Defendant Sambolin and the other officers asked plaintiff for his insurance, driver's license, and registration.

23. Plaintiff promptly retrieved those documents and handed them to defendant Sambolin and the other officers.

24. Even though all of plaintiff's documents were in proper order, even though he had a valid temporary license plate, and even though he had committed no traffic infraction, defendant Sambolin arrested plaintiff.

25. An officer ripped the valid temporary license plate from the rear windshield in plaintiff's vehicle.

26. Defendant Sambolin lacked any justification for arresting plaintiff, as there was no probable cause to believe that plaintiff had committed any crime or offense.

27. When one of plaintiff's friends verbally protested the arrest, an officer threatened to shoot the friend if he persisted in being a "tough guy."

28. Plaintiff was taken to the 73rd Precinct, where he was made to remove his clothes and squat for inspection of his anal cavity, despite the lack of probable cause or reasonable suspicion to believe that he had committed any crime or offense.

29. No drugs, weapons, or contraband were found on plaintiff's person or in his vehicle.

30. At about 5:30 a.m. on Friday, March 9, 2012, plaintiff was released from custody with a desk appearance ticket charging him with possession of a forged instrument in the third degree and failure to signal and requiring him to appear in Criminal Court in Kings County on April 9, 2012 to answer the charges.

31. On April 2, 2012, the Kings County District Attorney's office declined to prosecute plaintiff on any charges in connection with his arrest on March 8, 2012.

32. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City and the NYPD, including, without limitation, the inadequate screening, hiring, retaining, training, and supervision of their employees, and due to a custom, policy, and/or practice of: disproportionately stopping, detaining, and falsely arresting minorities; manufacturing false evidence against individuals; arresting innocent individuals in order to meet "productivity goals" (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; blanket strip searching of arrestees without individualized suspicion; and/or engaging in a practice of falsification in an attempt to justify the false arrest.

33. The above-described incident not an isolated occurrence. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as documented in civil rights actions filed in the United States District Courts in the Eastern and Southern Districts of New York as well as in New York State courts. The City and NYPD are thus aware (from said lawsuits, as well as from notices of claims filed with the City's Office of Comptroller and complaints filed with the NYPD's Internal Affairs Bureau and the City's Civilian Complaint Review Board) that many NYPD officers, including defendant Sambolin: disproportionately stop, detain, strip search, and falsely arrest minorities; manufacture false evidence against individuals; arrest innocent persons in order to meet "productivity goals" (i.e. arrest quotas); arrest individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; and/or engage in a practice of falsification in an attempt to justify the false arrest.

34. In a civil rights action filed in this Court involving false allegations of involvement in a narcotics transaction by NYPD officers, the Honorable Jack B. Weinstein observed:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the City approving illegal conduct of the kind now charged.

Colon v. City of New York, et. al., No. 2009 Civ. 08 (JBW), 2009 WL 4263362, at *2 (E.D.N.Y.).

35. The existence of the aforesaid unconstitutional customs and policies may further be inferred from the admission by former NYPD Deputy Commissioner Paul J. Brown, as reported by the media on January 20, 2006, that NYPD commanders are permitted to set “productivity goals.”

36. The City and NYPD are further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, the City and NYPD have failed to take corrective action. This failure caused defendant Sambolin to violate plaintiff’s civil rights.

37. Upon information and belief, the City and the NYPD were aware, prior to the incident, that defendant Sambolin lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as a police officer. Despite such notice, the City and NYPD have retained defendant Sambolin and failed to adequately train and supervise him.

38. As a result of the incident described above, plaintiff sustained, *inter alia*, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of liberty, physical restraints, and violation of his constitutional rights.

FIRST CLAIM FOR RELIEF

(False Arrest Claim Under 42 U.S.C. § 1983)

39. Plaintiff repeats and realleges paragraphs “1” through “38” with the same force and effect as if they were fully set forth herein.

40. Defendants, acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned without probable cause to believe that plaintiff had committed any crime or offense, in violation of plaintiff’s right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

SECOND CLAIM FOR RELIEF

(Municipal Liability Claim Under 42 U.S.C. § 1983)

41. Plaintiff repeats and realleges paragraphs “1” through “40” with the same force and effect as if they were fully set forth herein.

42. Defendants, singly and collectively, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States. The aforementioned customs, policies, usages, practices, procedures and rules of the NYPD included, but were not limited to: disproportionately stopping, detaining, and falsely arresting minorities based on insufficient and/or constitutionally suspect criteria; manufacturing false evidence; arresting innocent individuals in order to meet “productivity goals” (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; conducting unnecessary and/or otherwise unreasonable strip searches; and/or engaging in a practice of falsification in an attempt to justify the false arrest and/or strip search.

43. In addition, the City and the NYPD engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees which was the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of the City and the NYPD to properly recruit, screen, train, discipline, and supervise its officers, including defendant Sambolin, the City and NYPD have tacitly authorized, ratified, and have been deliberately indifferent to the acts and conduct complained of herein.

44. The foregoing customs, policies, usages, practices, procedures and rules of the City and the NYPD constitute deliberate indifference to plaintiff's safety, well-being and constitutional rights.

45. The foregoing customs, policies, usages, practices, procedures and rules of the City and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

46. The foregoing customs, policies, usages, practices, procedures and rules of the City and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

47. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City and the NYPD, plaintiff was unlawfully arrested.

48. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

49. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

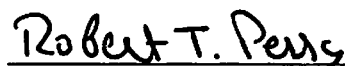
PRAYER FOR RELIEF

WHEREFORE, plaintiff demands the following relief jointly and severally against all the defendants:

- (A) Compensatory damages in an amount to be determined at trial;
- (B) Punitive damages in an amount to be determined at trial;
- (C) Reasonable attorney's fees and costs of this litigation; and
- (D) Such other relief as this Court deems just and proper.

Dated: Brooklyn, New York
March 5, 2015

Respectfully submitted,



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